

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

B.A. L L.B., Semester - VIII

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	BAL-801(A)	Law of Evidence (Bhartiya Sakshya Adhiniyam - 2023)	80	32	20	8	0	0	100	6	1	0	7
02.	BAL-802(C)	Health Law	80	32	20	8	0	0	100	6	1	0	7
03.	BAL-803(C)	Penology and Victiomology	80	32	20	8	0	0	100	6	1	0	7
04.	BAL-804(A)	Public International Law	80	32	20	8	0	0	100	6	1	0	7
05.	BAL-805(B)	Alternate Dispute Resolution	80	32	0	0	20	8	100	6	1	1	8
Total			400	160	80	32	20	8	500	30	5	1	36

L : Lacture

T : Tutorial

P : Practical

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B.A. LL.B. (Hons.) PART - IV SEMESTER - VIII

PAPER - I Law of Evidence

Bhartiya Sakshya Adhiniyam - 2023

Unit - I

Basic Concepts of Evidence Law

6. Introduction to Evidence Law
 - a. Definition and scope of evidence
 - b. Historical development and significance of evidence law
7. Relevancy of Facts
 - a. Facts in issue and relevant facts
 - b. Relevancy and admissibility of evidence
8. Types of Evidence
 - a. Oral evidence
 - b. Documentary evidence
 - c. Primary and secondary evidence
9. Presumptions and Burden of Proof
 - a. Legal presumptions
 - b. Burden of proof and its implications
10. Judicial Notice
 - a. Facts judicially noticeable
 - b. Scope and limitations

Unit - II

Relevancy of Facts (Sections 3-50)

9. General Principles of Relevance
10. Admissions
11. Confessions
12. Statements by Persons Who Cannot be Called as Witnesses
13. Statements made under special circumstances
14. Judgments of Courts when relevant
15. Opinions of Third Persons When Relevant
16. Character when relevant

Unit - III

On Proof, Oral evidence, Documentary evidence and related law (Sections 51-103)

7. Facts Which Need Not be Proved
8. Oral Evidence
9. Documentary Evidence
10. Public Documents
11. Presumptions as to Documents
12. Exclusion of Oral Evidence by Documentary Evidence

Unit - IV

Production and Effect of Evidence (Sections 104-168)

5. Burden of Proof
6. Estoppel
7. Witnesses
8. Examination of Witnesses

Unit - V

Improper Admission and Rejection of Evidence and Miscellaneous (Sections 169-170)

Improper Admission and Rejection of Evidence (Sections 169-170)

- a. No new trial for improper admission or rejection of evidence
- b. Repeal and savings (Section 170)
- c. Impact of Technology on Evidence Law
- d. Challenges and solutions
- e. Future trends in evidence law

Suggested Readings

6. K. A. Pandey, V. P. Sarathi's Law of Evidence (Eastern Book Company) (2023).
7. Ratanlal & Dhirajlal, The Law of Evidence (LexisNexis) (2021).
8. Sarkar, Law of Evidence – In India, Pakistan, Bangladesh, Burma, Ceylon, Malaysia & Singapore (LexisNexis) (2020).
9. Woodroffe and Amir Ali, Law of Evidence (LexisNexis) (2020).
10. Chief Justice M Monir, Law of Evidence (Universal Law Publishing) (2016).

B.A. L.L.B. (HONS.) PART-IV SEMESTER - VIII
PAPER – II HEALTH LAW

UNIT-I Concept

1. Concept & Definition of Health, 2. Right to health 3. International law & health.
4. Indigenous and Allopathic health system

UNIT-II Constitution of India

1. Constitutional protection – Fundamental Right & Directive principle.

UNIT-III Public health offences and Law

1. Offence affecting the Public Health, (Chapter XIV of IPC)
2. Nuisance, Miscarriage, (312.3.313 IPC), relevant provision of CrPC.

UNIT-IV Special critical problems

1. Immoral trafficking, 2. Female foeticides
3. Kidnapping and abduction – National protections.

UNIT-V Health and Legal Protection

1. Health and Legal protection – Environments law, J.J. Act, prenatal diagnostic technique, regulation & prevention of misuses,
2. Factory Act, Mental Health Act 1987, Maternity Benefit Act.

UNIT-V Jurisprudence of health services

1. Health law & Judiciary.
2. Types of health insurance
3. Public service related situations – Negligence (Private eye sterilization camp etc.)
4. Disposal of medical and surgical waste
5. Health Care Units (Public/Private) Liabilities

SELECT BIBLIOGRAPHY:-

1. Right to life and Right to Death : A study – The ICFAI University Press.
2. HIV/Aids – Health Care and Human rights approach – The ICFAI University Press.
3. Public Health : Enforcement and Law - The ICFAI University Press.
4. Clinical Trials : Law and Regulations- The ICFAI University Press.
5. Right to Public Health and Impact of Patents - The ICFAI University Press.

**B.A. L.L.B. (HONS.) PART-IV SEMESTER - VIII
PAPER – III PENOLOGY AND VICTIMOLOGY**

UNIT-I Evolution and nature of punishment

1. Kinds of punishment
2. Corporeal punishment
3. Capital Punishment
 - (i) Death Penalty by Public hanging
 - (ii) Capital punishment in India
 - (iii) Death Penalty or life imprisonment
 - (iv) Rarest of the rare cases
 - (v) Constitutionality and grounds of capital punishment
 - (vi) Minority judgement of justice Bhagwati

UNIT-II Imprisonment

1. Simple Imprisonment
2. Rigorous Imprisonment
3. Solitary confinement
4. Imprisonment for life
5. Monetary Punishment
 - (i) Fines
 - (ii) Forfeiture of Property

UNIT-III Prison Administration

1. Prisons in India
2. Indian Jail Reforms Committee Report 1919-20 (Recommendations)
3. Plea for setting up Prison Panel
4. Role of Prisons in Modern Penology
5. The problem of Overcrowding in prisons
6. The problem of prison Discipline
7. The problem of Prisoners' Health
8. The problem of Criminality in Prisons
9. Self-Government in Prisons
10. Prison Labour
11. The Prison Community
12. Classification of Prisoners and Jail Reform Committee's Report (1980-83), Views on classification of prisoners
13. The Problem of Undertrial Prisoners
14. Prison Reforms
15. Custodial torture in Prisons
16. Open Prisons in India

UNIT-IV Victimology

1. Nature and Development, categories
2. Compensation
3. Compensation to persons groundlessly arrested
4. Exgratia payment
5. Application of articles 21 and 301A - Comparison
6. National Police commission 1977-80

UNIT-V White Collar Crimes

1. Historical Background, Definition
2. Contributing factors
2. White collar crime in India
3. Hoarding, Black marketing and adulteration.
4. Tax evasion
5. White collar crime in certain profession – medical, engineering, legal, educational, Business deal
7. Disposal by anti-corruption and vigilance departments of state & UTs under Prevention of corruption Act 1983 and related sections of I.P.C.

SELECT BIBLIOGRAPHY:-

1. E. Sutherland, White collar Crime (1949).
2. Prof. N.V. Paranjape Criminology and penology.
3. Dr. Yamuna Shankar Sharma penology.
4. Om Prakash Shrivastava Principles of Criminal Law

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B.A. L.L.B. (HONS.) PART-IV SEMESTER - VIII PAPER – IV PUBLIC INTERNATIONAL LAW

UNIT - I: Introduction

1. Nature of International Law
2. Subjects of International Law
3. Relationship between International Law and Municipal Law

UNIT- II: Sources of International Law

1. Custom
2. Treaties
3. General Assembly Resolutions
4. General Principles
5. Juristic Works
6. Other Sources

UNIT- III: Recognition, Extradition and Law of Sea

1. Recognition
 - (a) Theories of Recognition
 - (b) De Facto, De jure recognition
 - (c) Implied Recognition
 - (d) Withdrawal of Recognition
 - (e) Retroactive Effects of Recognition
2. Extradition
 - (a) State Jurisdiction
 - (b) Customary Law Basis
 - (c) Treaty Law
 - (d) The nature of Obligation
3. Law of Sea
 - (a) Territorial Sea
 - (b) Contiguous Zone
 - (c) Exclusive Economic Zone
 - (d) Continental Shelf
 - (e) High Sea

UNIT- IV: International Organizations

1. UN
2. ICJ
3. IMF and IBRD
4. WTO
5. ICAO
6. IAEA
7. UNEP

SELECT BIBLIOGRAPHY:-

1. Starke – Introduction to International Law
2. Oppenheim- International Law
3. Brownlie- Principles of International Law
4. Shaw- International Law

B.A. L.L.B. (HONS.) PART-IV SEMESTER - VIII PAPER- V ALTERNATE DISPUTE RESOLUTION

Note: The written exam of this paper will have 80 marks and viva-voce will carry 20 marks.

UNIT-I Concept

1. Arbitration : Meaning scope and types
2. Arbitration Agreement- Essentials, Kinds
3. Who can enter into arbitration agreement ?
4. Validity
5. Reference to arbitration
6. Interim measures by court

UNIT-II Arbitration Tribunal

1. Composition
2. Jurisdiction
3. Grounds of challenge
4. Powers
5. Procedure
6. Court assistance
7. Award, Rules of guidance, Form and content, Correction and interpretation
8. Grounds of setting aside an award-Want of proper notice and hearing, Contravention of composition and procedure.
9. Impartiality of the arbitrator
10. Bar of limitations, res judicata
11. Consent of parties
12. Enforcement
13. Appeals

UNIT-III Conciliation

1. Distinction between "conciliation", "mediation", and "arbitration".
2. Appointment of conciliator
3. Interaction between conciliator and parties
4. Communication, disclosure and confidentiality
5. Suggestions by parties
6. Settlement agreement and its effect
7. Resort to judicial proceedings, legal effect
8. Costs and deposit

UNIT-IV International Arbitration

1. Enforcement of Foreign Award
2. New York convention Award
3. Geneva Convention Award

UNIT-V Rule making Power

1. Legal Service Authorities Act, 1987
2. Lok Adalat
3. Legal Litreacy and Legal Aid Camp.

SELECT BIBLIOGRAPHY

1. Avtar Singh : Arbitration and Conciliation
2. Goyal : Arbitration and Conciliation Act
3. Shukla : Legal remedies
4. Jhabvala : Law of Arbitration and Conciliation.